

NON-DISCLOSURE AGREEMENT

(unilateral) – «Sổ Sạch» project – **courtesy translation**

This English text is provided for convenience only. The parties have executed the Italian version, which is the sole binding text; in the event of any discrepancy, the Italian version prevails.

BETWEEN

Yuri Frassi, born in _____ on ____/____/____, Italian tax code _____, resident at _____ (the **"Discloser"**);

AND

_____, having its registered office at _____, tax code / VAT number _____, represented by its legal representative pro tempore (the **"Recipient"**);

together the **"Parties"** and individually a **"Party"**.

WHEREAS

(A) the Discloser has conceived and is developing **"Sổ Sạch"**, an AI-assisted bookkeeping service for Vietnamese household businesses (*hộ kinh doanh*) delivered through the Zalo messaging platform (the **"Project"**);

(B) the Project is operated by **CÔNG TY TNHH OFFICINE GẤP**, a company incorporated under the laws of Vietnam, enterprise code 0316904153, having its office in Hồ Chí Minh City, Vietnam (the **"Company"**), of which the Discloser is a member and legal representative; the Discloser warrants that he is entitled to dispose of the information covered by this Agreement and acts, to the extent required, also in the interest of the Company;

(C) the Recipient has expressed an interest in evaluating a possible investment in the Company, or another financing or collaboration transaction concerning the Project (the **"Transaction"**);

(D) for the sole purpose of such evaluation the Discloser is willing to make confidential information available to the Recipient on the terms set out below.

NOW THEREFORE THE PARTIES AGREE AS FOLLOWS.

1. Recitals

The recitals form an integral and substantive part of this Agreement.

2. Confidential Information

"Confidential Information" means any information, however communicated – orally, in writing, electronically, graphically or by product demonstration – disclosed by the Discloser to the Recipient in connection with the Transaction, whether or not expressly marked as confidential, including without limitation:

(i) the business plan, economic model, financial projections, unit-cost data, pricing, margins and customer acquisition and churn metrics; (ii) source code, system architecture, instructions given to artificial-intelligence models, data schemas and test results; (iii) the credit-readiness scoring methodology and the data-provenance model; (iv) the identity and commercial terms of partners, tax advisers and distribution-channel agents; (v) data, including aggregated or anonymised data, relating to user businesses; (vi) information concerning authorisation proceedings before the Zalo platform and before Vietnamese authorities; (vii) the existence and content of negotiations regarding the Transaction.

3. Exclusions

Confidential Information does not include information which the Recipient proves by documentary evidence: (i) was in the public domain at the time of disclosure, or subsequently entered it without breach of this Agreement; (ii) was already lawfully in its possession, free of any duty of confidence, before disclosure; (iii) was disclosed to it by a third party entitled to do so and not bound by any duty of confidence; (iv) was independently developed by it without use of the Confidential Information.

Where the Recipient is required to disclose Confidential Information by law, regulation or order of a judicial or administrative authority, it shall – where permitted and with reasonable notice – notify the Discloser in writing, limit disclosure to what is strictly required, and cooperate, at the Discloser's expense, in any effort to obtain protective treatment.

4. Permitted Purpose

The Recipient may use the Confidential Information **solely** to evaluate the Transaction (the **"Permitted Purpose"**). Any other use, direct or indirect, is expressly excluded, and in particular any use for the development, for itself or for third parties, of products or services competing with the Project, or for the benefit of companies in which the Recipient holds an interest or to which it is otherwise connected.

5. Obligations of the Recipient

The Recipient undertakes to: (i) keep the Confidential Information strictly confidential, applying protective measures no less stringent than those applied to its own confidential information of comparable importance and in any event no less than ordinary professional care; (ii) not reproduce, decompile, reverse engineer or otherwise analyse the materials received save strictly as necessary for the Permitted Purpose; (iii) not disclose the Confidential Information to third parties without the Discloser's prior written consent.

6. Representatives

The Recipient may disclose the Confidential Information only to those of its directors, employees and professional advisers who genuinely need it for the Permitted Purpose (the **"Representatives"**), having informed them of its confidential nature and provided they are bound by confidentiality obligations at least equivalent to those in this Agreement, whether by law or by contract. The Recipient is directly liable for any act of its Representatives which, if done by the Recipient, would breach this Agreement. On the Discloser's written request the Recipient shall provide a list of the Representatives to whom Confidential Information has been disclosed.

7. Trade secrets

The Parties acknowledge that the Confidential Information constitutes, in whole or in part, trade secrets within the meaning of articles 98 and 99 of the Italian Industrial Property Code (Legislative Decree no. 30 of 10 February 2005), and that this Agreement constitutes one of the reasonable steps to keep such information secret required by article 98(1)(c) thereof. The protection afforded by this Agreement is additional to, and does not replace, that provided by trade-secret law and by article 2598 of the Italian Civil Code on unfair competition.

8. Residual knowledge

Nothing in this Agreement prevents individual Representatives from using general knowledge retained in their unaided memory as a result of access to the Confidential Information. This provision does not in any circumstances authorise the reproduction, retention or consultation of the Discloser's documents, data or materials, nor the disclosure of specific data such as figures, partner lists, methodologies or code, and grants no licence over the intellectual property rights of the Discloser or the Company.

9. No licence and no obligation to contract

Disclosure of the Confidential Information grants the Recipient no right, licence, title or interest, express or implied, in it or in the related intellectual property rights, which remain the exclusive property of the Discloser and of the Company. This Agreement obliges neither Party to enter into the Transaction nor to continue negotiations, which either Party remains free to terminate at any time, without prejudice to the confidentiality obligations assumed here and to the duty of good faith under articles 1337 and 1375 of the Italian Civil Code.

The Confidential Information is provided as is. The Discloser gives no express or implied warranty as to its completeness or accuracy, without prejudice to the duty of fair dealing in negotiations.

10. Term

This Agreement takes effect on the date of signature and the confidentiality obligations survive for **3 (three) years** from that date, whether or not the Transaction is completed. In respect of Confidential Information constituting trade secrets under article 98 of the Industrial Property Code, the obligations assumed here survive for as long as such information retains that status, including beyond the three-year term.

11. Return and destruction

On the Discloser's written request, and in any event within 30 (thirty) days of the end of negotiations, the Recipient shall return or destroy the Confidential Information and all copies, confirming this in writing. The Recipient may retain one copy strictly to the extent required by law, regulation or internal retention procedures, such copy remaining subject to this Agreement for the duration of its retention.

12. Confidentiality of negotiations

Each Party shall refrain from disclosing to third parties the existence, content and status of the negotiations concerning the Transaction, and from using the name, trade marks or distinctive signs of the other Party or of the Company in public communications, without the other Party's prior written consent.

13. Personal data

The Parties shall process any personal data exchanged under this Agreement in compliance with Regulation (EU) 2016/679 and Legislative Decree no. 196 of 30 June 2003 as amended by Legislative Decree no. 101 of 10 August 2018, solely for purposes connected with the Permitted Purpose and for as long as necessary for it, each Party acting as an independent data controller.

14. Remedies

The Parties acknowledge that breach of the confidentiality obligations may cause the Discloser and the Company harm that cannot be fully remedied in damages. The Discloser and the Company therefore retain the right to seek, in addition to damages, injunctive and interim relief, including under article 700 of the Italian Code of Civil Procedure and articles 129 and 131 of the Industrial Property Code.

15. Third-party beneficiary

Pursuant to **article 1411 of the Italian Civil Code**, the obligations assumed by the Recipient under this Agreement are also stipulated for the benefit of **CÔNG TY TNHH OFFICINE GẤP**, which may accordingly enforce them in its own name against the Recipient. The Discloser may not revoke or amend that stipulation in favour of a third party once the Company has declared its intention to take the benefit of it.

16. Miscellaneous

This Agreement constitutes the entire agreement between the Parties on its subject matter and supersedes any prior understanding, oral or written. Any amendment must be in writing. The Recipient may not assign this Agreement, in whole or in part, without the Discloser's prior written consent. The invalidity or ineffectiveness of any single clause shall not affect the validity of the remainder, which the Parties undertake to supplement in good faith. Tolerance of a breach does not constitute a waiver of the rights arising from the clause breached.

17. Governing law and jurisdiction

This Agreement is governed by **Italian law**. The **Courts of Milan shall have exclusive jurisdiction** over any dispute concerning its validity, interpretation, performance or termination, to the express exclusion of any alternative or concurrent forum.

Place and date: _____, ____/____/____

The Discloser

Yuri Frassi

Place and date

The Recipient

Name and title of signatory

Pursuant to **articles 1341(2) and 1342 of the Italian Civil Code**, the Recipient declares that it has read, understood and specifically approves the following clauses: **art. 4** (Permitted Purpose and prohibition of competing use); **art. 6** (direct liability for Representatives); **art. 10** (term and survival for trade secrets); **art. 11** (return and destruction); **art. 14** (injunctive and interim relief); **art. 15** (third-party beneficiary); **art. 16** (prohibition of assignment); **art. 17** (governing law and exclusive jurisdiction of Milan).

The Recipient – specific approval
